

Legal : Moral : Ethical

Bhante Bodhidhamma · Tips of the Day · 2 min read

Words are important. The Buddha was careful about his use of words. He had difficulty in expressing his new understanding in the conventional language of the time. Hence coining the word, anatta – not-self. We are often confused by what is legal as opposed to moral. It's legal to drink alcohol and smoke cigarettes, but is it moral? What the Buddha means by sila/morality are those actions and speech that are skilful, wholesome, virtuous towards ourselves and others. Plainly there are many laws that make unwholesome actions legal. This is a consequence of our liberal society which takes 'religion' out of politics. It prefers to leave moral questions of a more personal nature to the individual. If government interferes with our personal behaviour, they are accused of creating a nanny state, or worse authoritarianism. Unfortunately, making immoral behaviour legal takes the sting out of our immoral actions. 'Well, it's legal. So it can't be that bad.' Ethical has a lot of 'currency' these days – it's very fashionable in business and finance to give them greater kudos. While the word 'ethics' looks to the positive side of morality, the word 'morality' still carries Victorian undertones of guilt and shame. Not that the Buddha was not clear fudged the question of which actions about those actions we should avoid – the Five Training Rules (sikkhāpada)* and he also encourages us to restrain the senses. This is balanced by the need to develop the qualities of friendship, compassion, reciprocal joy and so on. If we accept ethics to mean both of these – the negative and the positive side of our moral lives – then what we are really accepting is that our delusion or wisdom is expressed through our actions of speech and deeds – and in our thoughts. And it is all to do with relationship. However, it's rarely a case of black and white for ethical decisions have to take into account situation and context. One of those dilemmas arises with abortion. It was once thought horrific and criminal. Making it legal, softened the moral sting. In Buddhist understanding consciousness arises at conception, no matter how dimly. The potential is there. It is always going to be a difficult ethical decision for those who see the foetus as a human being. A similar dilemma arises concerning armed intervention. (See my essay for some thoughts about this: Is Armed Intervention Ever Justified? As always, a given decision is rooted in intention. Our responsibility is to make sure that our intentions, given context and situation, are for the benefit or the greater benefit of ourselves or others or both ourselves and others. Sikkhāpada: Training Rules (often translated as Precepts.) To refrain from killing sentient beings To refrain from taking what is not freely given To refrain from abusing our senses (usually limited to sexuality, but the word kama is sensual desire. That is not to indulge. To refrain from wrong speech – lying, slander, coarse language and useless talking. To refrain from taking drinks or drugs that cloud the mind.

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